TENTATIVE RULINGS

Judge Michael J. Strickroth

DEPT C15

Department C15 hears Law and Motion matters on Mondays at 1:45 pm

Court Reporters: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- **Civil Court Reporter Pooling; and**
- **For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.**

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 10:00 am in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. <u>Please do not call the department for tentative rulings if tentative rulings have not been posted.</u> The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C15 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at https://www.occourts.org/media-relations/aci.html will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)1.)

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS

Date: December 09, 2024

#	Case Name	Tentative
1	**Dib vs Lopez** **2021-01202917**	**Motion to Strike or Tax Costs** **Plaintiff Samira Dib's Motion to Strike or Tax Costs is GRANTED in part and DENIED in part.** Plaintiff moves to strike the entirety of Defendant's cost bill, or alternatively specific items within the cost bill, based on Plaintiff's contention any *CCP* 998 offer made by the defense was not in good faith. Therefore, costs should not be awarded to defendant. Lost in the argument is the fact the jury rendered a defense verdict, making Defendant the prevailing party. <u>Legal Standard</u> *Code of Civil Procedure* section 1032(b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." *Code of Civil Procedure* section 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. An item not specifically allowable under subdivision (a) or specifically prohibited under subdivision (b) may nevertheless be recoverable in the court's discretion if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." *Code Civ. Proc*. § 1033.5(c)(2). "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. However, whether a cost item was reasonably necessary is still a question of fact to be decided by the

		trial court . . . [M]ere statements in the points and authorities accompanying the motion to tax costs and the declaration of its counsel are insufficient to rebut prima facie showing that the claimed costs were necessarily incurred." *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable]; *Fennessy v. DeLeuw-Cather Corp.* (1990) 218 Cal.App.3d 1192 [contestant met burden by showing majority of costs claimed by a dismissed defendant were incurred on behalf of other defendants who remained in the case]. Here, Defendant seeks to recover costs of $46,844.39. Defendant's memorandum of costs is verified by Defendant's counsel, Charlotte M. Konczal. (ROA 270.) As such, the costs as set forth in the cost memorandum are prima facie evidence of their proprietary. <u>Reasonableness of Defendant's CCP § 998 Offer to Compromise</u> Plaintiff moves for an order striking Defendant's memorandum of costs in its entirety on the grounds Defendant's *CCP* § 998 Offer to Compromise on 1/31/24 for $15,000 (policy limits) with each party to bear their own attorneys' fees and costs, was a "token offer" made in bad faith with no reasonable expectation Plaintiff would accept it. This argument fails to acknowledge there was a defense verdict. Therefore, Defendant is the prevailing party entitled to recover authorized costs regardless of the *CCP* 998 offer. The motion to strike the entire memorandum of costs is DENIED. However, "Pursuant to subdivision (b)(1), fees of expert witnesses not ordered by the court (see § 1033.5, subd. (a)(8)) are not allowable as costs unless "expressly authorized by law." (CCP § 1033.5, subd. (b)(1).)" *Olson v. Automobile Club of Southern California* (2008) 42 Cal. 4th 1142, 1149. *CCP* § 998, subdivision (c)(1) provides: "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover

		postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant. "Section 998 allows for any party in a civil suit to serve a settlement offer to any other party before the commencement of trial." *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1483. "The purpose of section 998 is to encourage the settlement of litigation without trial." *Id*. Courts read a good faith requirement into section 998 to effectuate the purpose of the statute. Good faith in turn requires that the settlement offer be "realistically reasonable under the circumstances of the particular case." *Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821. The offer must therefore "carry with it some reasonable prospect of acceptance." *Elrod v. Oregon Cummins Diesel, Inc.* (1987) 195 Cal.App.3d 692, 700. "[E]ven a 'modest settlement offer' may be in good faith if it is believed the defendant has a significant likelihood of prevailing at trial." *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1264 [holding trial court did not abuse its discretion in awarding prevailing defendant expert witness fees where defendant's pre-trial 998 offer to waive considerable cost bill, which plaintiffs rejected, had significant monetary value to plaintiffs and defendant prevailed at trial, which itself constituted prima facie evidence that the offer was reasonable]; *Carver v. Chevron U.S.A., Inc.* (2002) 97 Cal. App. 4th 132, 154 ["conditional offer of $100 and waiver of costs and attorney fees" was "reasonable and in good faith" because it was "reasonably foreseeable as of the time the offer" that the defendant would prevail]. Nevertheless, even where a defendant obtains a defense verdict, courts may refuse to impose CCP § 998 penalties if it determines the defendant's offer was merely a "token" or "bad faith" offer." *Wear, supra,* at 821-822. "Where, as here, the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998. The burden is therefore properly on plaintiff, as offeree, to prove otherwise. [¶] Finally, whether a section 998 offer was reasonable and made in good faith is a matter left to the sound discretion of the trial court." *Elrod, supra,* at 700. Here, Defendant's complete defense verdict after a jury trial constitutes prima facie evidence Defendant's 998 Offer for his

		$15,000 policy limits was reasonable. Inexplicably, Plaintiff argues in her reply the offer here did not lead to a judgment more favorable than the offer. (Reply, at 4:13.) Plaintiff is mistaken. Consequently, the burden shifts to Plaintiff to prove it was unreasonable. She has failed to do so. Therefore, Defendant's 998 Offer was reasonable. The motion to strike the entire memorandum of costs is DENIED. Item 1: Filing and Motion Fees Plaintiff seeks to strike $614.46 for the cost to filing Defendant's Answer and Notice of Posting Jury Fees. Plaintiff argues Defendant is not entitled to recover this or any cost incurred prior to the date of Defendant's 998 Offer, 1/31/24. Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs. The motion to strike $614.46 from costs is DENIED. Item 4: Deposition Costs Plaintiff seeks to strike $1,659.27 for the cost of Interpreter, Reporter and Video Conference for the deposition of Plaintiff because this is a pre-offer cost: the invoice supporting this cost is dated 10/26/22. Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs. The motion to strike $1,659.27 from costs is DENIED. Item 8: Witness Fees Plaintiff argues $39,580.00 in fees for three experts Defendant incurred after it served its 998 Offer should be taxed. *Jay Grossman, D.D.D.* Defendant requests fees of $13,060, which is broken down into $3,060.00 for reviewing 10 pages of Plaintiff's supplemental

		discovery responses (3.6 hours at $850 per hour) and a flat rate of $10,000 for a day of trial. Plaintiff objects to Dr. Grossman's fees because Defendant has not provided any documentation to support the necessity of such expenses. Plaintiff points out Dr. Grossman did not testify at trial. Defendant does not dispute this fact. Plaintiff's objection to the review of discovery lacks merit. First, Defendant provided documentation supporting the expense with its opposition. Second, the court has discretion to award reasonable expert fees for time reasonably spent in preparation for trial, whether or not the expert testifies, as well as time spent on the witness stand if the expert does testify. *Santantonio, supra,* at 123-124; *Michelson v. Camp* (1999) 72 Cal.App.4th 955, 974. However, given Dr. Grossman did not testify at trial, Plaintiff's objection to the $10,000 charge for a day of trial is proper and shifts the burden to Defendant to justify the charge. *Jones, supra,* at 1266 ["[I]f items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs."]. Defendant fails to offer any justification for this charge. The motion to tax $10,000 from expert fees is GRANTED. <u>*John Lieu, M.D., M.S.*</u> Defendant requests fees of $1,620, which is broken down into $1,500.00 for review 1,110 pages of records (2.5 hours at $600 per hour) and $120 for a 20-minute consultation. Plaintiff objects to Dr. Lieu's fees because Defendant has not provided any documentation to support the necessity of such expenses. Plaintiff's objection to the review of records lacks merit. First, Defendant provided documentation supporting the expense with its opposition. Second, the court has discretion to award reasonable expert fees for time reasonably spent in preparation for trial, whether or not the expert testifies, as well as time spent on the witness stand if the expert does testify. *Santantonio, supra,* at 123-124; *Michelson, supra,* at 974. The motion to tax $1,620 from expert fees is DENIED.

		AGSC Consulting, Inc. on behalf of Expert Arya Nick Shamie, M.D. Defendant requests fees of $24,900, which is broken down into $7,700 to review medical records and preparation of report (7 hours at $1,100 per hour), $2,200 for late cancellation of 4/1/24 deposition, and a flat rate of $15,000 for a day of trial. Plaintiff objects to Dr. Shamie's fees because Defendant has not provided any documentation to support the necessity of such expenses. As with the other experts, Plaintiff's objections to the review of medical records and preparation of a report are not well taken. *Santantonio, supra,* at 123-124; *Michelson, supra,* at 974. Plaintiff objects to the cancellation charge because Plaintiff has no record of a confirmed deposition scheduled on or around 4/1/24. Plaintiff provided emails which indicate she emailed Defendant on 3/26/24 requesting experts availability for deposition on Friday afternoon, over the weekend or Monday afternoon, but Defendant did not respond until 4/1/24 at 2:55 pm responding that "were ready for the depo of our expert tonight" (referring to 4/1/24) and again at 4:02 pm stating "Please confirm Dr. Shamie's deposition is going forward at 8:00 p.m. and provide the deposition link for the appearance." Defendant's states in his support declaration that Plaintiff's counsel agreed on 4/1/24 to a deposition of Dr. Shamie on 4/1/24. In the opposition Defendant contends both parties agreed in court on 4/1/24 that Dr. Shamie would be available for deposition that evening. On this basis, Defendant has established the reasonableness of the charge. Plaintiff objects to the flat rate $15,000 for a day of trial because it contradicts Dr. Shamie's trial testimony and the time of his testimony at trial. Plaintiff provided a trial transcript from 4/4/24, wherein Dr. Shamie testified that the full day charge depended on how long he was in court. When asked if his fee would also be $15,000.00 if he was in court for two hours, he responded "No. That would be a half a day," which would be a charge of $7,500.00. The transcript indicates he testified that day for a total of 1.5 hours. Thus, according to Plaintiff, he should have only charged $7,500 for trial. Defendant argues he requested a full day of expert testimony as a matter of precaution due to the uncertainty of when he would be called to testify during the day; Dr. Shamie's schedule had to be

cleared so he was available all day for any time needed. Defendant also argues that under Gov. Code, § 68092.5, it is not necessary that Dr. Shamie be “in court” all day to charge a full day of his time.

In reply, Plaintiff argues Defendant knew when Dr. Shamie would be called to testify. According to Plaintiff, the day before Dr. Shami testified, the parties, in the presence of the court, discussed the order of witnesses and the anticipated timing of their testimony for the following day as had been their practice throughout the trial, and any changes that occurred or anticipated to occur would be discussed at the end of the day before. Both parties agreed Dr. Shamie’s testimony, including direct, cross and re-direct, would not take more than 1.25 hours as evidenced by the Witness List.

Here, Dr. Shamie’s full day charge is unreasonable. The Witness List indicates the parties estimated Dr. Shamie would testify for 1.25 hours, Dr. Shamie actually testified for 1.5 hours during which he testified he ordinary bills for a half day when he testifies for two hours. Given the parties usual practice of discussing the witness schedule on a near daily basis during trial and Defendant’s argument that the timing of his testimony was uncertain, it was unreasonable for Defendant to request a full day of expert testimony from Dr. Shamie. A half day charge is reasonable to allow for Orange County traffic given Dr. Shamie is based in Los Angeles. Thus, Dr. Shamie’s fees should be taxed by $7,500.

Plaintiff also objects to Dr. Shamie’s fee because it exceeds the national average of expert costs and expenses of $450/hour for file review/preparation and $500/hour fee for testifying in court based on SEAK’s 2024 Expert Witness Fee Study. However, Dr. Shamie’s fee was included in his Fee Schedule that was provided to Plaintiff as part of Defendant’s expert designation and Plaintiff never objected to it. Defendant’s expert designation was served before Defendant’s 998 Offer. Thus, Plaintiff could have reasonably expected to pay Dr. Shamie’s hourly rate as part of Defendant’s costs if Defendant obtained a favorable outcome.

Lastly, Plaintiff’s objection to Defendant’s choice to have “live” expert testimony at trial in lieu of a declaration lacks merit given that she too chose to use “live” expert witness testimony.

The motion to tax $7,500 from expert fees is GRANTED.

Item 13: Interpreter Fees

Plaintiff seeks to strike $1,150.00 for the cost of Interpreter/Translation Services for the deposition of Plaintiff because this is a pre-offer cost: the invoice supporting this cost is dated 10/15/22.

Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs.

The motion to strike $1,150.00 from costs is DENIED.

In summary, the motion to tax as to expert witness costs listed in Item No. 8 is GRANTED as to $17,500, and DENIED as to the balance.

Moving party to give notice.

2

Floriani Engineering Inc vs Aegean Stoneworks, Inc., a California Corporation

2019-01061892

Motion to Be Relieved as Counsel of Record

The motion of attorney John J. Freni, Esq., A Professional Law Corporation to withdraw as attorney of record for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering is GRANTED. *Code Civ. Proc.* § 284, *CRC* 3.1362.

Attorney John J. Freni, Esq seeks an order being relieved as counsel for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering.

Summary of Moving Attorney's Evidence:

1A.	Mandatory Notice Form?	Yes. ROA 460
1B.	Mandatory Declaration Form?	Yes. ROA 452
1C.	Proposed Order?	Yes. ROA 461

2.	Reasons for Motion?	Failure to pay substantial outstanding attorney's fees, and failure to comply with payment options under which counsel would consent to continue the representation.
3A.	Service on Client?	10/29/24 via email pursuant to CRC, Rule 3.1362(d)(2)
3B1.	Recent Confirmation of Client's Address?	Yes. Counsel had consistent communications with the client in the last 30 days using the email, addresses for the client's two principals, Cindy Floriani and Vincent Baroldi
3B2.	If no recent confirmation, what efforts made?	N/A
4.	The next hearing scheduled?	5/19/25 Trial Setting Conference
5.	Additional proceedings currently scheduled?	None
6.	Trial Date?	None

Moving attorney has shown he has complied with all the requirements of the *California Rules of Court*, Rule 3.1362 and filed all the required forms.

There is good cause for counsel to withdraw. Mr. Freni asserts Floriani Engineering has failed to pay substantial outstanding attorney's fees and failed to comply with payment options. Accordingly, the motion to be relieved as counsel is GRANTED.

		Attorney will be relieved as counsel of record for client <u>effective upon filing of a Proof of Service of the Court's signed order on client.</u> Moving attorney is to give notice.
3	**L. vs West Coast Fertility Centers, LLC** **2023-01341735**	**Motion for Leave to File First Amended Cross-Complaint** **Defendant/Cross-Complainant SR Bray dba PowerPlus's (PowerPlus) Motion for Leave to File a First Amended Cross-Complaint is GRANTED.** PowerPlus moves for an order for leave to file their First Amended Cross-Complaint (FACC). PowerPlus seeks to add Vitaly A. Kushnir, M.D. (Kushnir) as a cross-defendant and add Cross-Defendants West Coast Fertility Centers, LLC (West Coast Fertility) and West Coast Medical Group, PC (West Coast Medical) (collectively, "Responding Parties") to the first cause of action for express indemnity and the fourth cause of action for breach of contract. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading[.]" *Code of Civil Procedure* sections 473(a)(1), 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading."]. Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296 ["There is a strong policy in favor of liberal allowances of amendments."] Denial is rarely justified. *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) However, denial is appropriate if the party seeking the amendment has been dilatory ***and*** the delay has prejudiced the opposing party. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [denial proper where leave sought on eve

		of trial when a jury was about to be impaneled, without explanation for nearly two-year delay, and the only way to avoid prejudice to the opposing party was to continue trial to allow further discovery to defend against the new allegations]. A motion for leave to amend must state with particularity what allegations are to be amended. Namely, it must state what allegations in the previous pleading are proposed to be deleted and/or added, if any, and where, by page, paragraph, and line number. *California Rules of Court*, Rule 3.1324(a)(2)-(3). The motion must be accompanied by a declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. *CRC*, Rule 3.1324(b). The motion must also be accompanied by the proposed amended pleading, numbered to differentiate it from the prior pleadings or amendments. *CRC*, Rule 3.1324(a)(1). It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. *Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469. Here, PowerPlus' motion substantially complies with the procedural requirements. PowerPlus' motion includes an Index of Changes that identifies the proposed additions and deletions from the cross-complaint, by page, paragraph, and line number. (Mot. p. 4.) PowerPlus also attached a proposed FACC. (Lagas Decl., ¶ 6, Ex. B.) PowerPlus sufficiently explains the effect of the amendment and why it is necessary: PowerPlus explains the amendment will properly identify itself as SR Bray dba PowerPlus rather than Power Plus LLC and will add claims and necessary parties after learning Kushnir signed the service contracts at issue with PowerPlus. (Lagas Decl., ¶ 5, 10, 11.) With respect to the facts giving rise to the amendment, PowerPlus explains it learned the facts giving rise to the amendment during the course of written discovery between 2/5/24 and 5/30/24 after receiving Cross-Defendants' various discovery responses that confirmed Kushnir signed the contractual documents at issue in the cross-complaint. (Lagas Decl. ¶¶ 10-12, Ex. C.) PowerPlus further explains it was a mistake for its prior handling attorney to dismiss the fourth cause of action for breach of contract against West Coast

		Fertility and West Coast Medical in January 2024 at a time when pertinent facts as to the contract at issue in the cross-complaint were not known; namely, no discovery had been completed at that time as to any of the Defendants, their contractual relationships, and/or the person that had executed various contractual documents issued by PowerPlus to Healthcare Realty Trust, Inc. After receiving West Coast Fertility and West Coast Medical discovery responses on 5/30/24, PowerPlus' current attorney sent a meet and confer email on 6/5/24, to cross-defendants' attorney regarding amending the cross-complaint. (Lagas Decl. ¶¶ 8, 13-15, Ex. D.) PowerPlus contends it was a reasonable mistake for the prior handling attorney to agree to dismiss these entities at a time when it was unbeknown and/or not appreciated that their owner, Kushnir, had signed the contractual documents at issue in the case and the motion is brought within six months of the dismissal without prejudice. (Lagas Decl., ¶ 13.) Responding Parties argue leave to amend should be denied because the proposed amendments fail to state a claim. PowerPlus responds the proposed FACC sufficiently alleges all essential facts to support the cause of action for express indemnity and breach of contract and Responding Parties' attempt to adjudicate disputed issues of material facts is procedurally inappropriate. PowerPlus is correct. Courts generally do not consider the validity of proposed amendments to a pleading on a motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *California Casualty General Insurance Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 ["[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."]; *Atkinson v. Elk Corp*. (2006) 109 Cal.App.4th 739, 760 [explaining that even assuming the party opposing amendment is correct that the proposed amendment would be legally insufficient to state a claim, the "better course of action" is to allow amendment "and then let the parties test its legal sufficiency in other appropriate proceedings."]. Responding Parties argue the motion should be denied due to undue delay because emails show PowerPlus has had all the facts concerning Kushnir's execution of the contractual documents at issue since August 2022. Namely, the served and signed proposals came directly from West Coast staff and several Power Plus managers were included in these emails. Further, the proposals clearly indicate Kushnir as the signee. PowerPlus has explained the delay as a

		mistake made by its prior handling attorney who dismissed the West Coast cross-defendants from the breach of contract claim early in the litigation before discovery had been completed without knowing and/or appreciating that their owner, Kushnir, had signed the contractual documents at issue. As PowerPlus correctly asserts, under 473(b) standards, this constitutes excusable neglect on the part of PowerPlus' attorney. Upon receiving discovery responses in May 2024, PowerPlus' current handling attorney sought to meet and confer with Responding Parties about amending the cross-complaint on 6/5/24 and then filed the instant motion on 6/27/24, less than six months after dismissing the breach of contract cause of action. Accordingly, PowerPlus has sufficiently explained the delay and acted diligently to correct the error. Lastly, Responding Parties have not established undue prejudice from the delay. Responding Parties argue the delay unduly and proposed amendments are unduly prejudicial because they will result in additional written discovery, subpoenas, document requests/review, depositions, expanded expert review and motions practice, including demurrer, motion for summary judgment, and potential discovery motions, all of which would extend the trial timeline, increase litigation costs, and alter defense strategies. However, PowerPlus acted diligently upon learning of the need to amend and since no trial date has been set, no delay of trial will result from the amendment. Responding Parties concern that Kushnir has already been deposed and Power Plus may ask for his deposition again is misplaced because PowerPlus concedes that another deposition in relation to this motion is not indicated since his deposition included inquiry into numerous contractual documents that he executed with PowerPlus. Further, the Discovery Act sets various limits on depositions of individuals. Kushnir can avail himself of those protections if PowerPlus seeks an unwarranted and/or impermissible additional deposition. Accordingly, Responding Parties have not established prejudice. The motion is GRANTED. Moving party is ordered to file and serve its First Amended Cross-complaint within ten (10) days. Moving party to give notice.

		Case Management Conference If the parties submit on the tentative and/or the tentative becomes the order of the Court, the case would not appear to be at issue and scheduling associated with the Case Management Conference would be premature—such that the Case Management Conference is continued to 4/7/2025 at 8:30 AM in Department C15. If the parties do not submit on the tentative, then all parties are expected to attend the Case Management Conference, either remotely or in the courtroom. Plaintiff to give notice.
4	**Bennett vs General Motors, LLC** **2023-01366979**	**Demurrer to First Amended Complaint and Motion to Strike Portions of Complaint** **Defendant General Motors LLC's Demurrer to the Fifth Cause of Action to Plaintiff's First Amended Complaint and Motion to Strike Punitive Damages are CONTINUED to January 27, 2025, at 1:45 p.m in Department C15.** Defendant failed to meet and confer in good faith prior to filing the motions. Defendant is to file a declaration no later than 5 court days before the continued hearing date indicating it has met and conferred with Plaintiff in accordance with *Code of Civil Procedure* §§ 430.41 and 435.5, and state whether/which any of the issues raised in the demurrer and motion have been resolved; and if not, why not. Moving party to give notice. **Case Management Conference** On the Court's own motion, the Case Management Conference is continued to January 27, 2025, at 1:45 PM in Department C15. Defendant to give notice.

5	**Fund 411 Inc. vs Centrex Software LLC** **2024-01404303**	**Motion to Appear Pro Hac Vice** **The Application of Jeffrey Gilbert to Appear Pro Hac Vice for Plaintiff Fund 411 Inc. dba Fundmerica is CONTINUED to January 13, 2025, at 1:45 PM in Department C15.** In the original papers, moving attorney failed to satisfy the requirements of *California Rules of Court*, Rule 9.40. The moving attorney did not timely file a verified declaration which addresses any of the requirements of Rule 9.40, subdivision (d). Specifically, Rule 9.40, subdivision (d) states: "The application must state: (1) The applicant's residence and office address; (2) The courts to which the applicant has been admitted to practice and the dates of admission; (3) That the applicant is a licensee in good standing in those courts; (4) That the applicant is not currently suspended or disbarred in any court; (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record." In the original papers, the moving attorney also failed to submit sufficient evidence to show he has satisfied the fee requirement of Rule 9.40, subdivision (e). In an Amended Application filed on 12/5/2024, moving attorney addresses some of the deficiencies mentioned above. As these late papers were filed/served two court days before the hearing, the hearing is continued in order to allow time for those served to respond/object to the amended application. Moving attorney to give notice.

6	**Randall vs Morena** **2021-01193717**	**Motion to Seal** **Defendant Dr. Farhad Contractor's Motion to Seal is DENIED.** Defendant has complied with the procedural requirements for sealing under *California Rules of Court*, rule 2.551. <u>Merits</u> To grant a motion to seal, the court must expressly find that: a. an overriding interest exists that overcomes the right of public access to the record; b. the overriding interest supports sealing the records; c. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; d. the proposed sealing is narrowly tailored; and e. no less restrictive means exist to achieve the overriding interest. *Cal. Rules Ct.*, Rule 2.550(d); *McGuan v. Endovascular Technologies, Inc.* (2010) 182 Cal.App.4th 974, 988. These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. *NBC Subsidiary (KNBC–TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1217–1218; *Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97, 104; *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026–1027 [finding that in determining whether to seal records, courts must weigh constitutional requirements for disclosure against such factors as privacy rights]. "The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open." *McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31; *In re Marriage of Nicholas* (2010) 186 Cal.App.4th 1566, 1575 [strong presumption of public access to court records]. Plaintiff has not proven an overriding interest is his financial, trade secret, and privacy interest in the settlement. Here, the Declaration of Andrew Breidenbach states: "[t]he Good-Faith Settlement Motion

		contains confidential and private financial information, including settlement amounts and payments. [¶] Plaintiff and Dr. Contractor have expressed an interest in confidentiality as to the settlement payment, which is reflected in the confidentiality provision of their settlement. [¶] The settlement, including the settlement amount, is confidential pursuant to the terms of the settlement agreement" (Breidenbach Decl., ¶¶ 2-4.) The redacted motion (ROA 277) removes the settlement amount as well as the characterization of the amount. The amount of a settlement is not a compelling interest which overrides the right of public access. Plaintiff cites to *In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn.3; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal. 4th 1178, 1222 n.46; and *McGuan v. Endovascular Tech., Inc.* (2010) 182 Cal.App.4th 974, 988. *Providian* dealt with internal documents related to scripts for telemarketers and memoranda. *NBC* dealt with exclusion of the press and public from hearings outside the presence of the jury. *McGuan* dealt with trade secrets. Defendant has not provided any authority that the amount of settlement creates an overriding interest. In fact, the amount of settlement is one of the main factors to consider regarding whether to grant a motion for good faith settlement. *Tech-Bilt v. Woodward-Clyde & Assoc*. (1985) 38 Cal.3d 488, 499. Thus, Defendant has failed to prove the privacy or financial interest in the amount he is paying in settlement is an overriding interest. Therefore, the Motion is denied. Moving party to give notice.
7	**Jimenez vs Universal Care, Inc.** **2024-01378478**	**Motion to Compel Deposition** **Plaintiff Griselda Jimenez's Motion to Compel the Deposition of Defendant Universal Care, Inc.'s PMQ is DENIED as MOOT.** The deposition of Defendant's PMQ was completed on November 4, 2024, prior to the hearing on this motion. Both sides have requested sanctions. Having read the papers submitted by both sides requesting sanctions, the Court declines to award sanctions to either party. Both parties should have compromised and resolved this discovery dispute before bringing it to the Court.

		Plaintiff to give notice.
8	**Third Laguna Hills Mutual vs Angel** **2023-01359717**	**Motion for OSC re: Contempt** This motion is off calendar with the Notice of Withdrawal filed on 12/4/2024.
9	**Khanjan vs Vedadi** **2022-01284292**	**Case Management Conference** This case is related to number 10 below. Regardless as to whether the parties submit on the tentative and/or the tentative becomes the order of the Court, the parties through counsel are required to attend the Case Management Conference, either remotely or in the courtroom.
10	**Vedadi vs Khanjan** **2023-01313607**	**Motion to Strike – Anti SLAPP** **Defendant Reza Khanjan's Motion to Strike Plaintiffs' Complaint under the Anti-SLAPP Statute is GRANTED.** *Code of Civil Procedure* section 425.16 (b)(1) states, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88. "Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or

		petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” *Id.* at 89. A defendant has the initial burden of demonstrating the suit arises from conduct described in *Code Civ. Proc.* § 425.16, and that is it not subject to the exceptions contained in *Code Civ. Proc.* § 425.17. *Brill Media Co., LLC v. TCW Group, Inc.* (2005) 132 Cal.App.4th 324, 330. Defendant need only make a prima facie showing of protected activity under Section 425.16, and then the burden shifts to plaintiff to establish no such protection exists. *Code Civ. Proc*. § 425.16 (b), and *Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458 to 459. Once the burden shifts, plaintiff must demonstrate the complaint is both legally sufficient and supported by prima facie showing of facts to sustain a favorable judgment. *Premier Medical Management Systems, Inc. v. California Insurance Guaranty Association* (2006) 136 Cal.App.4th 464, 472. **<u>Step One – Protected Activity:</u>** “The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. *Castleman v. Sagaser* (2013) 216 Cal.App.4th 481, 490–491. Here, Plaintiffs’ claims arise from protected speech activity under *Code of Civil Procedure* section 425.16(e)(3). *<u>The Statement was Made in a Public Forum</u>* *Code of Civil Procedure* section 425.16(e)(3) states the following statements are protected: “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest.” “Unlike the first and second category of statement or conduct protected by section 425.16, the third and fourth categories protect only statements or conduct connected to an issue of public interest. Beyond that requirement, however, these categories are quite broad, applying by their terms to any statements made in a place open to the public or in a public forum, or any conduct engaged in, in furtherance

		of the rights of petition or free speech." *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 893. *Demetriades v. Yelp, Inc.* (2014) 228 Cal.App.4th 294, 310, states, "[. . .] Yelp's Web site is a public forum and contains matters of public concern in its reviews of restaurants and other businesses. . ." *Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887–888, states: "Among other things, the anti-SLAPP law defines "protected activity" to include "any written ... statement ... made in a place open to the public or a public forum in connection with an issue of public interest." (§ 425.16, subd. (e)(3).) As neither party disputes on appeal, reviews posted to an Internet website meet this definition of protected activity. (E.g., *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1145-1147, 147 Cal.Rptr.3d 496; *Demetriades v. Yelp, Inc.* (2014) 228 Cal.App.4th 294, 310, 175 Cal.Rptr.3d 131.)" In *Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 41, footnote 4, the California Supreme Court stated, "Web sites accessible to the public, like the "newsgroups" where Rosenthal posted Bolen's statement, are "public forums" for purposes of the anti-SLAPP statute. [Citations].)" *Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1366, holds: "It is settled that 'Web sites accessible to the public ... are public forums for purposes of the anti-SLAPP statute.' [Citations]" Under the foregoing authority, Defendant's online Yelp review of Plaintiffs' business in this case was made in a "public forum" for purposes of section 425.16(e)(3). *The Statement Concerned a Matter of Public Interest* Defendant's Yelp review was connected with a matter of public interest under section 425.16(e)(3). *Nygard, Inc. v. Uusi–Kerttula* (2008) 159 Cal.App.4th 1027, 1039 (*Nygard*), holds, "Section 425.16 does not [expressly] define 'public interest,' but its preamble states that its provisions 'shall be construed broadly' to safeguard 'the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.' (§ 425.16, subd. (a).)" In *Nygard*, the court held that " 'an issue of

		public interest' ... is any issue in which the public is interested. In other words, the issue need not be 'significant' to be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest." *Id*. at p. 1042. *Wong v. Jing*, *supra*, at 1366-1367 holds: "[A]lthough 'not every Web site post involves a public issue' (*D.C. v. R.R.* (2010) 182 Cal.App.4th 1190, 1226, 106 Cal.Rptr.3d 399), consumer information that goes beyond a particular interaction between the parties and implicates matters of public concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute. (Compare, e.g., *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 343–344, 37 Cal.Rptr.3d 480 [newspaper article about medical practitioner involved issue of public interest where information would assist others in choosing doctors]; *Wilbanks v. Wolk*, *supra*, 121 Cal.App.4th at p. 898, 17 Cal.Rptr.3d 497 [statements about insurance broker involved issue of public interest because they constituted a consumer warning to others with similar problems]; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 564, 566–567, 92 Cal.Rptr.2d 755 [claim that manufacturer disseminated false information concerning effectiveness of drug used by many was an issue of public interest]; with *Dyer v. Childress* (2007) 147 Cal.App.4th 1273, 1280, 55 Cal.Rptr.3d 544 [false portrayal of real person in a movie not an issue public interest]; *Weinberg v. Feisel* (2003) 110 Cal.App.4th 1122, 1132, 2 Cal.Rptr.3d 385 [published allegation of theft by one token collector against another not an issue of public interest]; *Rivero v. American Fed. Of State, County & Mun. Employees, AFL–CIO* (2003) 105 Cal.App.4th 913, 924, 130 Cal.Rptr.2d 81 [information published in union newspaper about termination of person who supervised eight people not an issue of public interest].)" Here, the first amended complaint alleges Defendant made the following assertions in his Yelp review(s): • "Dr. Verdadi (sic) does not know what malpractice insurance is so I'm assuming he does not have what he does not know." • "[Dr. Vedadi is] deceitful…"

• “2 other vets from other hospitals said the dog would have survived if it was treated on the day we came to [Dr. Vedadi].”

• “Both [vets] said they would never advise outpatient with such a small dog”

• “[Dr. Vedadi] gave an option that [he] knew never had a “50-50” chance of success.”

• “As result of [Dr.Vedadi’s] delay and negligent advice, our dog died when proper treatment was given at reputable hospital.”

• “Advice caused delay in proper treatment and by the time we obtained second opinion it was too late.”

• “Dog died but could have survived if treated properly according to 2 other vets.” (Complaint, ¶ 15.)

Defendant’s alleged statements include information which is of public interest because such information is sufficiently broad and relevant to Plaintiffs’ competence that it could assist others in choosing a veterinary clinic. *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 344 [“Since the statements at issue served as a warning against plaintiff's method of self-promotion, and were provided along with other information to assist patients in choosing doctors, the statements involved a matter of public concern”]; *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 900 [“Wolk's statements were a warning not to use plaintiffs' services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were directly connected to an issue of public concern.”] Here, Defendant’s alleged statements concern Plaintiffs’ alleged competence and the quality of Plaintiffs’ advice regarding veterinary care. These statements are the type of warning to other consumers that California courts have held to constitute protected speech.

Therefore, Defendant has established the applicability of the first anti-SLAPP prong because he has shown the Yelp review constituted protected speech activity under *Code of Civil Procedure* section 425.16(e)(3).

		<u>*Commercial Speech Exemption Does not Apply*</u> Plaintiffs contend the commercial speech exemption of *Code of Civil Procedure* section 425.17 applies. Section 425.17(c) states the following: “(c) Section 425.16 does not apply to any cause of action brought against a person primarily engaged in the business of selling or leasing goods or services, including, but not limited to, insurance, securities, or financial instruments, arising from any statement or conduct by that person if both of the following conditions exist: (1) The statement or conduct consists of representations of fact about that person's or a business competitor's business operations, goods, or services, that is made for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services, or the statement or conduct was made in the course of delivering the person's goods or services. (2) The intended audience is an actual or potential buyer or customer, or a person likely to repeat the statement to, or otherwise influence, an actual or potential buyer or customer, or the statement or conduct arose out of or within the context of a regulatory approval process, proceeding, or investigation, except where the statement or conduct was made by a telephone corporation in the course of a proceeding before the California Public Utilities Commission and is the subject of a lawsuit brought by a competitor, notwithstanding that the conduct or statement concerns an important public issue.” Here, Plaintiffs allege Defendant was a “proxy competitor” seeking to transfer business from Plaintiffs to their competitor. However, Plaintiffs do not allege any specific facts, or present any evidence, to support this theory. The evidence shows Defendant was merely a disgruntled customer. There is no evidence Defendant had ties to Plaintiffs’ competitor, other than that he apparently obtained a second opinion from the competing clinic and believed he could have obtained better care for his pet at the competing clinic. Therefore, Defendant recommended other pet owners go to Plaintiffs’ competitor. Significantly, Plaintiffs have not shown Defendant was in the business of selling veterinary services. Therefore, this exemption does not apply.

<u>Step Two – Probability of Prevailing on Plaintiffs' Complaint</u>

Code of Civil Procedure section 425.16(b)(1) states, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

In opposing a SLAPP motion, Plaintiffs must present admissible evidence and cannot rely on the allegations in its complaint. *Roberts v. Los Angeles County Bar Association* (2003) 105 Cal.App.4th 604, 613 to 614. Affidavits or declarations "on information and belief" are hearsay and inadmissible evidence to show a probability that plaintiff will prevail. *Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497. But evidence otherwise excludable only because it lacks a proper foundation may be used if there is a high probability that plaintiff could establish a proper foundation at trial. *Fashion 21 v. Coalition for Humane Immigrant Rights of Los Angeles* (2004) 117 Cal.App.4th 1138, 1148 [videotape lacking foundation on SLAPP could be considered because of high probability tape could be authenticated at trial.]. Similar to a summary judgment motion, failure to raise evidentiary objections, or to seek and obtain rulings on such objections at the hearing, has been held to waive the objections so that they are not preserved for appeal. *Gallant v. City of Carson* (2005) 128 Cal.App.4th 705, 710.

The showing of minimal merit must be supported by admissible evidence which is tested by the same standard governing a motion for summary judgment, nonsuit or directed verdict. *Taus v. Loftus* (2007) 40 Cal.4th 683, 714.

Here, Plaintiffs' first amended complaint alleges a single cause of action for tortious interference with prospective economic advantage.

"An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) the defendant's intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant's acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is

		independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard." *SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.* (2007) 148 Cal.App.4th 663, 673, fn. 7. Defendant contends the First Amended Complaint is a sham pleading because Plaintiffs have changed their legal theory from libel to interference with economic advantage. Defendant also contends this claim cannot be premised on interference with the market in general but must identify a specific economic relationship under *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 523. In opposition, Plaintiffs rely on the declaration of Plaintiff Vedadi, who generally disputes Defendant's statements in the Yelp reviews and describes how it impacted Plaintiffs' business financially. Assuming the facts in Plaintiff's declaration to be true, Plaintiffs have not established a probability of prevailing. There is no evidence submitted to support Plaintiffs' "proxy competitor" theory; i.e., that Plaintiff was acting as an agent for Plaintiffs' competitors. Plaintiffs have not presented evidence of Defendant's interference with a specific economic relationship or shown that Defendant's acts were independently wrongful. Therefore, Plaintiffs have not demonstrated a probability of prevailing on their sole cause of action in the First Amended Complaint. Request for Attorney Fees Defendant may bring a separate noticed motion for attorney fees under the anti-SLAPP statute. As this case is related but NOT consolidated with Number 9 above, the granting of this anti SLAPP motion terminates this suit. Defendant is to prepare, file and serve a Proposed Judgment consistent with this ruling. An Order to Show Cause hearing re Submission of the Proposed Judgment is set for 1/13/2025 at 8:30 AM in Department C15. If the Proposed Judgment is submitted prior to that date, the Order to Show Cause hearing will go off calendar.

		Moving party to give notice. **Case Management Conference** This case is related to number 9 above. If the parties submit on the tentative and/or the tentative becomes the order of the Court, the Case Management Conference will go off calendar as moot. If the parties do not submit on the tentative or the tentative does not become the order of the Court, the parties through counsel should attend the Case Management Conference, either remotely or in the courtroom.
11	**Telles vs American Honda Motor Co., Inc.** **2023-01350110**	**Motion to Compel Deposition (Oral or Written)** **Motion to Compel Production** **Plaintiff's Motion to Compel Further Responses to Requests for Production, set two, and Motion to Compel Deposition are CONTINUED to January 27, 2025, at 1:45 PM in Department C15.** The parties have not engaged in sufficient efforts to meet and confer regarding the dispute. The parties are ordered to engage in further attempts to meet and confer, telephonically or in person, no later than 12/16/24. If supplemental responses are agreed to be provided, said verified responses are to be e-served no later than 1/13/2025. Failure by a party to attempt to meet and confer in good faith may result in sanctions. (*Code Civ. Proc.*, § 177.5.) No later than 1/16/2025, each side may submit a supplemental brief, not to exceed 5 pages, stating the scope of any remaining dispute, including identification of each discovery request that remains in dispute. The supplemental brief shall attach a copy of any further/supplemental responses served. The supplemental brief shall also address the status of the agreement, if any, regarding Defendant's PMK deposition. Clerk to give notice.